

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 16-16

MAVL CAPITAL, INC., IAM & AL GROUP, INC., and MAXIM OSTROVSKIY

(Complainants)

v.

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER

(Respondents)

**RESPONDENTS' RESPONSE IN OPPOSITION TO COMPLAINANTS' MOTION FOR
LEAVE TO FILE A RESPONSE/REPLY**

Respondent Marine Transport Logistics, Inc. ("MTL") respectfully submit this response opposing Complainants' March 14, 2017 Motion For Leave to File a Response/Reply. For the reasons discussed herein, Complainants' Motion For Leave to File a Response/Reply should be denied because Complainants have not demonstrated the necessary extraordinary circumstances required pursuant to Rule 71.

**I. COMPLAINANTS HAVE NOT SHOWN THAT EXTRAORDINARY
CIRCUMSTANCES EXIST TO WARRANT FILING OF A REPLY.**

Under Commission Rule 71, parties need to demonstrate "extraordinary circumstances" to justify filing a reply on a non-dispositive motion. Rule 71 provides that: The moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or presiding officer, or upon a showing of extraordinary circumstances. 46 C.F.R. § 502.71. For the reasons next discussed, Complainants have not shown that such extraordinary circumstances exist here.

A. A response to Complainants' Petition to Supplement Its Exceptions is not a cross-motion nor is it an "extraordinary circumstance" warranting the filing of a further reply.

First, Complainants' counsel's argument that MTL's reply to Complainants' March 7, 2017 Petition For Leave To Supplement Exceptions ("Complainants' Petition") is somehow a separate cross-motion, is an argument without any merit. A cross-motion is a motion that is separate from the relief requested in the subject matter of the original motion. A reply opposing the relief sought in a motion is not a cross-motion.

Complainants' reasoning to the contrary – reasoning which is not supported by any law or rule cited by Complainants – would render nearly every opposition to a motion a cross-motion: to wit, an opposition to a motion for summary judgment would become a cross-motion for a declaratory order that summary judgment is improper; an opposition to a motion to strike testimony would be a cross-motion to admit testimony; etc. That is obviously not a correct statement of the law. Accordingly, MTL's filing of a reply opposing Complainants' Petition is not an "extraordinary event"; it is an *ordinary* event that is expressly contemplated and provided for in Rule 71(b) as well as in motion practice under any State or Federal Rule.

B. The proposed arguments to-be raised in Complainants' reply are duplicative and cumulative of arguments in Complainants' motion.

Second, the arguments that Complainants purport to set forth in a reply are duplicative and cumulative of its arguments already alleged in its Order to Show Cause, in its filed-Exceptions, and in Complainants' Petition (the latter of which should be denied.) MTL, in this regard, did not raise any extraordinary or new arguments when opposing Complainants' Petition. To recap, MTL's reply thereto (consisting of 5 pages) was limited to the arguments raised in Complainants' Petition: (A) responding to Complainants' representation that the bill of lading was not in Complainants' possession at the time of its filing Exceptions; (B) responding to

Complainants' argument that the bill of lading created a relevant contract of carriage between Complainants and MTL. Again, addressing Complainants' contentions is not an "extraordinary circumstance" pursuant to Rule 71. Complainants have not cited any "extraordinary circumstances" and are simply seeking to have the last word.

C. **The question to be answered on Complainants' motion to supplement the Exceptions is whether the evidence is new and whether the evidence is material: the answer to both is in the negative.**

Finally, the question that Complainants needed to answer in its response to Administrative Law Judge Guthridge's Order to Show Cause, in its filed-Exceptions, in Complainants' Petition, and now in its motion to file a reply is quite simple: did a contract of carriage exist *between Complainants and MTL*? Nothing that Complainants have, including its present motion, answers this question in Complainants' favor. Nor is Complainants' failure to successfully respond ALJ Guthridge's question in its three prior filings an "extraordinary circumstance."

ALJ Guthridge's remark in this regard in the Initial Decision concerning a bill of lading referred to "an MTL bill of lading *with Complainants identified as the shipper.*" Initial Decision, at p. 17 (emphasis added). The MTL bill of lading which Complainants are puzzlingly attempting to inject does not identify Complainants as the shipper because Complainants were not a party to that bill of lading. The contract of carriage between MTL and a third-party, which ALJ Guthridge expressly took note of in the Initial Decision, even if the bill of lading was not provided by the parties, thus, does not create a contract of carriage between Complainants and MTL.

As ALJ Guthridge held in the Initial Decision, and as pointed out in Respondent's response to Complainants' Petition:

There was no subsequent "union of ship and [Mercedes]," to export the Mercedes overseas until it was placed on the vessel to be transported to Dubai, and Complainants *were not involved in that transportation.*

Initial Decision, at p. 17 (emphasis added).

Lastly, it should be noted that Complainants do not deny having possession of the bill of lading provided by Respondent since 2014. Complainants instead engage in blame-shifting and avoidance, and try to confuse matters with the Commission by equivocating the said bill of lading (involving non-parties) to mean a contract of carriage "between the parties" or by claiming that the bill of lading, which was in Complainants' possession since 2014, was "created solely for purposes of litigation . . . as part of respondents' attempted fraud on the Court."

First, regardless of Complainants' arguments, it is clear that this bill of lading is not and cannot be a contract of carriage "between the parties." Second, even the Commission or ALJ Guthridge should accept *arguendo* Complainants' allegation of the bill of lading being fabricated, which Respondent denies, it does not change that Complainants nevertheless had *this* bill of lading in their possession and did not produce it when responding to the Order to Show Cause or when filing Exceptions. It does not change the fact that Complainants represented to the Commission that a bill of lading was not previously available because of a lack of discovery – despite Complainants having represented Mr. Safonov in litigations and FMC proceedings since 2016, well before responding to the January 17, 2017 Initial Decision. And, in any event, Complainants have already gotten in the "last word" in this regard and the Commission can

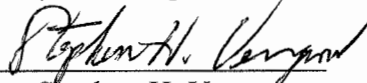
decide accordingly. Once again, this is not an “extraordinary circumstance” warranting a further reply.

CONCLUSION

In sum, Complainants have not shown that an “extraordinary circumstance” exists for the filing of a reply. Accordingly, both Complainants’ Petition to Supplement its Exceptions and their instant Motion should be denied.

Dated: March 20, 2017
New York, NY

Respectfully submitted,
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CERTIFICATE OF SERVICE

The undersigned declares under penalty of perjury that the following is true and correct:

1. I am over the age of eighteen years and I am not a party to this action.
2. On March 20, 2017, I served a complete copy of Respondent's RESPONDENTS' RESPONSE IN OPPOSITION TO COMPLAINANTS' MOTION FOR LEAVE TO FILE A RESPONSE/REPLY, in Docket No. 15-04 by E-mail and regular mail to:

Secretary, Federal Maritime Commission
800 N. Capital St., NW.
Washington DC 20573-0001
secretary@fmc.gov

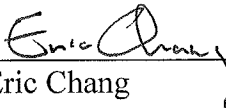
(Original and 5 copies)

And by U.S. mail and e-mail to:

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(Copy only)


Eric Chang

Dated: March 20, 2017
New York, New York